

FIRST ENDORSEMENT

Chief Prosecutor, APU, Andre Applewhite, Civilian Complaint Review Board to Deputy Commissioner Paul M. Gamble, Sr, Department Advocate's Office, December 27, 2024. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-28384 against Detective Julio Martinez, Tax Registry No. 958882. The case was conferenced on December 12, 2024, before Assistant Deputy Commissioner of Trials Anne Stone, who approved the dismissal of the charges in return for the recommended negotiated penalty of Command Discipline Schedule "A" and forfeiture of three (3) vacation days.

Andre Applewhite

Andre Applewhite
Chief Prosecutor, APU
New York City Civilian Complaint Review Board

**DISPOSITION OF CHARGES**

PD 468-142 (Rev. 8-89)-2

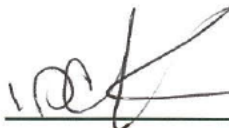
CASE NO.
C-031681BOOK & PAGE NO.
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PERSONNEL ORDER NO.

RANK/TITLE DTS	SURNAME, MARTINEZ	FIRST JULIO	M.I.	COMMAND 067
SHIELD NO. 7441	TAX REGISTRY NO. 958882	SOCIAL SECURITY NO.		DATE APPOINTED 07/08/2015
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Detective Julio MARTINEZ, on or about January 22, 2022, at approximately 2300, while assigned to 067 PCT and on duty, in the vicinity of Remsen Avenue and Clarkson Avenue, Kings County, engaged in conduct prejudicial to good order, efficiency, or discipline of the Department, in that DET. MARTINEZ threatened to tase § 87(2)(b) without police necessity.	DISMISSED	A - COMMAND DISCIPLINE It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule A Command Discipline with the forfeiture of the amount of vacation days as indicated.
2. Detective Julio MARTINEZ, on or about January 22, 2022, at approximately 2300, while assigned to 067 PCT and on duty, in the vicinity of Remsen Avenue and Clarkson Avenue, Kings County, abused their authority as a member of the New York City Police Department, in that DET MARTINEZ searched the vehicle in which § 87(2)(b) § 87(2)(b) and § 87(2)(b) were occupants without sufficient legal authority.	DISMISSED	VACATION DAYS 3.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.



FIRST DEPUTY COMMISSIONER

02/04/25

DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)



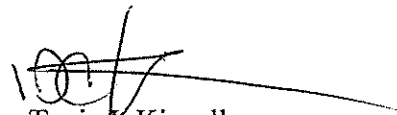
POLICE COMMISSIONER

4/25/25

DATE

THIRD ENDORSEMENT

First Deputy Commissioner to Police Commissioner, February 4, 2025. Contents noted. I reviewed the negotiated plea in Disciplinary Case No. 2023-28384 (PODS Case No. C-032461) against Detective Julio Martinez, Tax No. 958882, with the recommendation that the Charges and Specifications against Detective Martinez be dismissed and that Detective Martinez receive a Schedule "A" Command Discipline and forfeit three (3) vacation days. Assistant Deputy Commissioner, Trials Anne E. Stone reviewed this case and made a favorable recommendation pertaining to the proposed settlement; I concur. **RECOMMEND APPROVAL.**



Tania I. Kinsella

FIRST DEPUTY COMMISSIONER

TIK/jpc

APPROVED
APR 25 2025

JESSICA S. TISCH
POLICE COMMISSIONER